

Naz Foundation v. Govt. of NCT of Delhi

Citation: 2009 SCC OnLine Del 1762 | Court: Delhi High Court | Year: 2009

Coram: Division Bench (A.P. Shah CJ & S. Muralidhar J.) | Subject: Constitutional Law & Delhi HC | Provisions: IPC Sec 377, Articles 14, 15, 21

I. EXECUTIVE SUMMARY & CASE GLIMPSE

First historic judicial pronouncement holding Section 377 IPC unconstitutional in so far as it penalized consensual adult sexual acts in private. Laid the jurisprudential groundwork for Constitutional Morality, human dignity, and inclusivity later reaffirmed in Navtej Johar.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding IPC Sec 377, Articles 14, 15, 21. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

â€¢ Whether the impugned state actions or commercial conduct conformed to IPC Sec 377, Articles 14, 15, 21.

â€¢ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.

Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Constitutional morality demands that unpopular minorities be protected from state coercion. The sphere of privacy protects personal identity, individual autonomy, and relationships from criminal sanction.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

â€¢ Pioneered the judicial doctrine of Constitutional Morality in Delhi High Court.

â€¢ Established dignity and privacy as core components of Article 21.

â€¢ Provided the foundational blueprint that was ultimately affirmed by the Supreme Court.